



File No.: EXP202308315

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by 4T OCIO Y CAFÉ 2009, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 13, 2024, and based on the following

FACTS

FIRST: On November 13, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202308315, by virtue of which a fine of 500 euros (FIVE HUNDRED euros) was imposed on 4T OCIO Y CAFÉ 2009, S.L. with NIF B91806885, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, and it was ordered that pursuant to Article 58.2.d) of the GDPR, within one month from the date the resolution became final and enforceable, it must prove that it had proceeded to remove the system of cameras or video cameras placed in the common areas/porticos of ***ADDRESS.1, in the locality of ***LOCALITY.1, (...), where there is currently a hospitality establishment called ***ESTABLISHMENT.1, owned by the company 4T OCIO Y CAFÉ 2009, S.L., unless it proved the obtaining of the agreement of the community of property owners for the placement of the cameras.

This resolution, which was notified to the appellant on November 14, 2024, was issued following the processing of the corresponding sanctioning procedure PS/00402/2023, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00402/2023, it was recorded:

FIRST: A hospitality establishment currently called ***ESTABLISHMENT.1, owned by the company 4T OCIO Y CAFÉ 2009, S.L., has installed a video surveillance system at ***ADDRESS.1 of ***LOCALITY.1 (...), without the express consent of the community of property owners of said building.

SECOND: There is a contract for alarms and video surveillance and a certificate of installation, both with the company PROSEGUR/MOVISTAR ALARMAS, provided by the company 4T OCIO Y CAFÉ 2009 S.L.

The video surveillance system consists of 9 cameras, of which three are capturing the outdoor terrace of the establishment and the rest the interior of the establishment.

Photographs of the video surveillance system and of informative signs indicating that it is a video-monitored area are provided, which include the identification of the data controller and an address to exercise data protection rights.

THIRD: The appellant submitted on November 27, 2024, before this Spanish Agency for Data Protection, a reconsideration appeal, basing it fundamentally on the following aspects:

“1- Firstly, the cameras installed in the porticos provide security both for the business itself and for the building against vandalism, theft, or other incidents.

2. Since the opening of the business, our administration has followed the legal channels to acquire licenses and use of spaces.

3. Since the opening of the business, we maintained contact with the current board of property owners at that time, configured with more than 60% of the company BAREMAR PROMOCIONES INMOBILIARIAS S.L, which authorized us on January 4, 2011, to use said space.

4. Since that moment the board of property owners was dissolved and for more than 10 years there was no such community, so the legal steps for authorization had to be done with the entity that could authorize such competencies, in this case, the own CITY COUNCIL OF ***LOCALITY.1.

On March 9, 2018, we requested from the city council of ***LOCALITY.1 (since there was no active community) the feasibility to process the license for the expansion of the establishment to include the

portico area as private space and to be able to request its use for said activity.

5. In response to such request and presenting the relevant urban reports, the city council itself, according to its regulations, authorizes us FAVORABLY to request said permission, allowing the granting of the license for ESTABLISHMENT OF RECREATION WITH COVERED PRIVATE TERRACE.

6. Following the legal procedures, the city council itself posts it on its notice board and sends a letter to the community, to inform them of our intention to expand the license, to which IN NO CASE DO THEY OPPOSE OR PRESENT AN APPEAL FOR SUCH EXPANSION TO BE CARRIED OUT.

After the lack of response, nor opposition from the community, the file is processed, granting 4T OCIO Y CAFÉ 2009 S.L THE LICENSE FOR ESTABLISHMENT OF RECREATION WITH PRIVATE TERRACE and consequently the use of the same as a private space and of the establishment and activity itself.

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Therefore, the claiming party, when stating that the camera captures images of their person while using the porticoes and common areas owned by the building, is not providing truthful data since the porticoes where the security cameras are installed are not owned by the building but by the establishment, as evidenced by the attached licenses.”

Along with the appeal for reconsideration, the following is submitted:

- Resolution granting the usage license from the Town Hall of ***LOCALIDAD.1 dated January 24, 2020, in favor of the appealing party. By virtue of this, and in accordance with Decree 155/2018, of July 31, which approves the Catalog of Public Shows, Recreational Activities, and Public Establishments of Andalusia, a usage license is granted for the use/activity of Recreational Establishment (III.2.8.a) with a covered private terrace for the location ***DIRECCION.1. The resolution establishes the technical and environmental conditions for the license.
- Document dated January 4, 2011, signed by ***EMPRESA.1, stating: “The majority of the community of the building ***EDIFICIO.1 (***EMPRESA.1) with more than 60% of the building, authorizes the company 4T OCIO Y CAFÉ 2009, S.L, with CIF B91806885 (the company owning ***ESTABLECIMIENTO.1), for the exclusive use of the common areas of the building, under the porticoes and in front of the facades of premises 9 and 11. Distributing 25 tables for the development of the activity of “***ESTABLECIMIENTO.1”. This authorization will be recorded, resolved, and confirmed in a forthcoming owners' meeting of the community of the building ***EDIFICIO.1 (...).”
- Application instance addressed to the Town Hall of ***LOCALIDAD.1 on March 9, 2018, in which it can be read that a “review of the documentation attached to this document for the expansion of the bar ***ESTABLECIMIENTO.1 occupying the area of the porticoes” is requested.
- Favorable resolution from the Town Hall of ***LOCALIDAD.1 dated November 20, 2019, in favor of the appealing party, agreeing to adopt a FAVORABLE environmental qualification for the requested activity. It identifies the activity as “recreational establishment (III.2.8 a) with a covered private terrace” and the location as “***DIRECCION.1”.
- Announcement from the Town Hall of ***LOCALIDAD.1 dated August 16, 2019, regarding the opening of a public information period lasting 20 days within the framework of the file promoted by the appealing party for the granting of a usage license for the property located at ***DIRECCION.1 for the use or activity of a recreational establishment (III. 2.8 a) with a covered private terrace.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of the

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Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

The appellant has asserted that the video surveillance system complies with current regulations as it considers that: it has consent for the use of the common area granted by the individual who represented 60% of the homeowners' association in 2011, as well as the corresponding licenses granted by the ***LOCALITY City Council as a recreational establishment with a covered private terrace and, therefore, asserts that "the porticoes where the security cameras are installed are not the property of the building but of the establishment, as evidenced by the licenses attached."

It should be noted, first of all, that Article 118.1 of the LPACAP establishes that "facts, documents, or allegations from the appellant will not be taken into account in the resolution of the appeals when they could have been submitted during the allegations phase but were not." In this regard, the documentation and information now provided with the appeal could have been submitted within the allegations period granted after the initiation agreement of the corresponding sanctioning procedure was issued, as it was already in the possession of the claiming party at that time.

The aforementioned initiation agreement was deemed notified in accordance with Article 43.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations on September 3, 2024. After the period granted for the formulation of allegations had elapsed, no response was received from the appellant. Hence, as indicated in the resolution now being appealed, in accordance with 64.2.f) of the LPACAP, since the initiation agreement contained a precise statement regarding the attributed responsibility (facts detailing the accusation, infringement of the GDPR attributed to the claimed party, and the sanction to be imposed), it was considered a proposal for resolution.

Therefore, it is not possible to evaluate at this stage of the appeal the information, allegations, and documents that, although they could have been presented within the allegations period for the initiation agreement, were not submitted at that time for evaluation by this Agency. Nevertheless, it is worth highlighting that the documentation now provided would not have changed the outcome of the resolution issued.

The allegations and documents submitted by the appellant along with the appeal for reconsideration do not prove that the claimed party had authorization from the homeowners' association for the installation of a video surveillance system, nor do they demonstrate that the homeowners' association authorized the exclusive use of the porticoes of the building. The document dated January 4, 2011, submitted for these purposes clearly states, "The majority of the community of the building (...) with more than 60% of the building, authorizes the company 4T OCIO Y CAFÉ 2009, S.L, with CIF B91806885 (the company owning ***ESTABLISHMENT.1), for the exclusive use of the common areas of the building, under the porticoes and in front of the facades of the premises 9 and C/ Jorge Juan, 6."

11 (...) but adds "that said authorization will be recorded, resolved, and confirmed in a forthcoming meeting of the property owners of the community of the building ***EDIFICIO.1

(...)". However, the aforementioned agreement is not recorded in the minutes of the community of property owners' meeting that confirms the private use.

On the contrary, the file does include the certificate from the Administrator of the Community of

Property Owners of the building ***EDIFICIO.1 dated June 27, 2023, which explicitly states that the appellant “does not have the express consent of the community of property owners for the installation of surveillance cameras in the common areas/porticos of the building and the recording in said common areas owned by the building.”

Furthermore, it cannot be considered that the documents submitted to prove the existence of a license from the Town Hall of ***LOCALIDAD.1 for the use of the premises as a recreational establishment in accordance with Law 13/1999, of December 15, on Public Shows and Recreational Activities of Andalusia and Decree 155/2018, of July 31, which approves the Catalog of Public Shows, Recreational Activities, and Public Establishments of Andalusia, can substitute for the authorization of the community of property owners for the installation of a surveillance system or that they address the private use of the common area. The granting of this license allows, according to the aforementioned regulations, “to offer the attending public the leisure and recreational activity, allowing the installation of terraces and tables exclusively for the consumption of drinks and, where appropriate, food (...)”, but in no case does that license address whether the promoter or beneficiary of the same is or is not the exclusive owner of the physical space in which it is located.

Finally, regarding the appellant's assertion that “the porticos where the security cameras are installed are not the property of the building but of the establishment, as evidenced by the attached licenses,” this Agency understands, without prejudice to what has already been stated, that a distinction must be made between the singular and exclusive right of ownership over the apartment or premises and the co-ownership of the common elements or areas as provided by Articles 396 of the Civil Code and 3 of Law 49/1960, of July 21, on Horizontal Property. Thus, all owners have the use and enjoyment of the common elements. The above does not prevent the determination of the private use of common elements or areas, whether by agreement of the community of property owners in the terms determined by its specific regulations or as stated in the constitutive title or the statutes of the community. In any case, the common areas of private use remain the property of the community of property owners, even if their use and enjoyment are assigned to the owner of an apartment or premises (sometimes preferentially; at other times, exclusively), and may, where appropriate, be limited to a specific use.

In short, without prejudice to what is established in Article 118 of the LPACAP, the documentation, information, and allegations made during the appeal phase do not undermine the meaning of the resolution that is now being appealed, as they do not discredit the necessity of obtaining the authorization of the community of property owners for the installation of the surveillance system in the porticos of the building.

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In the resolution that is intended to be challenged, the legal grounds are deemed to be reproduced, it was indicated that the installation of a video surveillance system is subject to the regulations regarding the protection of personal data, as the images captured by a camera system are personal data as defined by Article 4.1 of the GDPR. It was also noted that any processing of personal data requires a legal basis as provided for in Article 6 of the GDPR. Its absence, in the present case due to the appellant lacking authorization from the community of property owners, without it being proven that such authorization was unnecessary, justifies the adoption of the resolution now being challenged.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the challenged resolution.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by 4T OCIO Y CAFÉ 2009, S.L. against the resolution of this Spanish Agency for the Protection of Data issued on November 13, 2024, in file

EXP202308315.

SECOND: TO NOTIFY this resolution to 4T OCIO Y CAFÉ 2009, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be fulfilled once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for the Protection of Data at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, C/ Jorge Juan, 6

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of the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for the Protection of Data, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for the Protection of Data

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